

STATE OF NEW YORK

5119--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- reported and referred to the Committee on Ways and Means -- recommitted to the Committee on Ways and Means in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the state finance law, in relation to solid waste removal invoices and directing penalties and fines related to such invoices to be deposited into the environmental protection fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 392-l to read as follows:

3 § 392-l. Solid waste removal invoices. 1. For the purposes of this
4 section, the following terms shall have the following meanings:

5 (a) "Estimated full cost" shall mean a good faith projection of the
6 expected full cost.

7 (b) "Full cost" shall mean the total price, including any service
8 charges and additional fees, of waste removal services.

9 (c) "Waste removal services" shall mean the proper removal and
10 disposal of solid waste by a waste hauler for a customer on a one-time
11 basis.

12 (d) "Waste hauler" shall mean any person registered or permitted by
13 the department of environmental conservation to transport solid waste.

14 2. Any waste hauler that provides waste removal services shall:

15 (a) Inform a customer of the estimated full cost waste removal
16 services may cost, presented in a range from lowest to highest amount,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 including the cost per unit of weight, prior to the provision of waste
2 removal services; and

3 (b) Provide such customer with an invoice of the full cost of such
4 waste removal services immediately after the completion of such waste
5 removal services; and

6 (c) Provide such customer with an itemized receipt following payment
7 for such waste removal services.

8 3. Each invoice required pursuant to paragraph (b) of subdivision two
9 of this section shall contain the following notice:

10 "THIS INVOICE IS SUBJECT TO THE PROVISIONS OF SECTION 392-1 OF THE
11 GENERAL BUSINESS LAW."

12 4. Any person who violates any provision of this section shall be
13 liable for a civil penalty not to exceed five hundred dollars for the
14 first violation and not to exceed two thousand five hundred dollars for
15 subsequent violations.

16 5. All civil penalties and fines collected for any violation of this
17 section shall be deposited to the credit of the environmental protection
18 fund established pursuant to section ninety-two-s of the state finance
19 law.

20 § 2. Subdivision 3 of section 92-s of the state finance law, as
21 amended by section 3 of part YY of chapter 58 of the laws of 2025, is
22 amended to read as follows:

23 3. Such fund shall consist of the amount of revenue collected within
24 the state from the amount of revenue, interest and penalties deposited
25 pursuant to section fourteen hundred twenty-one of the tax law, the
26 amount of fees and penalties received from easements or leases pursuant
27 to subdivision fourteen of section seventy-five of the public lands law
28 and the money received as annual service charges pursuant to section
29 four hundred four-n of the vehicle and traffic law, all moneys required
30 to be deposited therein from the contingency reserve fund pursuant to
31 section two hundred ninety-four of chapter fifty-seven of the laws of
32 nineteen hundred ninety-three, all moneys required to be deposited
33 pursuant to section thirteen of chapter six hundred ten of the laws of
34 nineteen hundred ninety-three, repayments of loans made pursuant to
35 section 54-0511 of the environmental conservation law, all moneys to be
36 deposited from the Northville settlement pursuant to section one hundred
37 twenty-four of chapter three hundred nine of the laws of nineteen
38 hundred ninety-six, provided however, that such moneys shall only be
39 used for the cost of the purchase of private lands in the core area of
40 the central Suffolk pine barrens pursuant to a consent order with the
41 Northville industries signed on October thirteenth, nineteen hundred
42 ninety-four and the related resource restoration and replacement plan,
43 the amount of penalties required to be deposited therein by section
44 71-2724 of the environmental conservation law, all moneys required to be
45 deposited pursuant to article thirty-three of the environmental conser-
46 vation law, all fees collected pursuant to subdivision eight of section
47 70-0117 of the environmental conservation law, all moneys collected
48 pursuant to title thirty-three of article fifteen of the environmental
49 conservation law, beginning with the fiscal year commencing on April
50 first, two thousand thirteen, nineteen million dollars, and all fiscal
51 years thereafter, twenty-three million dollars plus all funds received
52 by the state each fiscal year in excess of the greater of the amount
53 received from April first, two thousand twelve through March thirty-
54 first, two thousand thirteen or one hundred twenty-two million two
55 hundred thousand dollars, from the payments collected pursuant to subdi-
56 vision four of section 27-1012 of the environmental conservation law and

1 all funds collected pursuant to section 27-1015 of the environmental
2 conservation law, all moneys required to be deposited pursuant to
3 sections 27-2805 and 27-2807 of the environmental conservation law, all
4 moneys collected pursuant to section 71-2730 of the environmental
5 conservation law, all moneys required to be deposited pursuant to
6 section seven hundred sixty-five of the general business law, all moneys
7 required to be deposited pursuant to section 27-3205 of the environ-
8 mental conservation law, all moneys collected pursuant to section three
9 hundred ninety-two-1 of the general business law, and all other moneys
10 credited or transferred thereto from any other fund or source pursuant
11 to law. All such revenue shall be initially deposited into the environ-
12 mental protection fund, for application as provided in subdivision five
13 of this section.
14 § 3. This act shall take effect immediately.